

Amit Nath Saini & Ors vs State (Gov. Of Nct Of Delhi) & Anr on 15 September, 2020

Author: Anu Malhotra

Bench: Anu Malhotra

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IN THE HIGH COURT OF DELHI AT NEW DELHI

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CRL.M.C. 6587/2019 and Crl.M.A. No. 2564/2020

AMIT NATH SAINI & ORS

Through:

.... Petitioners
Mr. Deepak Singh Thakur, Advocate
with petitioners in person.

versus

STATE (GOV. OF NCT OF DELHI) & ANR

..... Respondents

Through: Mr. Kamal Kumar Ghei, APP for State

with SI Pushpender Saroha, PS Sarai
Rohilla

Mr. Priyank Khattar, Adv for R-2 with R-
2 in person.

CORAM:

HON'BLE MS. JUSTICE ANU MALHOTRA

ORDER

% 15.09.2020 Vide the present petition, the petitioners 1 to 5 i.e. Amit Nath Saini, Maheshwari Nath Saini, Smt. Kamlesh, Smt. Himani Nath Saini and Sunil Kumar Soni seek quashing of FIR No.193/2012 PS Sarai Rohilla registered under Sections 498A/406/506/34 of the Indian Penal Code, 1860 as well as other consequential proceedings and also qua declaration of proclaimed person or any other FIR under Section 174/174A of the Indian Penal Code, 1860 submitting to the effect that a settlement has been arrived at between the parties and that the marriage between the petitioner No.1 and the respondent No.2 has since been dissolved vide a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, 1955 dated 25.11.2019 in HMA No. Signature 1787/2019 of the Court of the Judge, Family Court, Central District, Tis Not Verified Digitally Signed By: SUMIT GHAI Hazari Courts and that pursuant to the said settlement the entire stated Signing Date: 15.09.2020 21:02:59 This file is digitally signed by PS to HMJ ANU MALHOTRA.

sum of Rs.35,00,000/- has been paid to the respondent No.2.

The Investigating Officer of the case is present and has identified the petitioners No.1 to 5 present in the Court today through Video Conferencing as being the accused arrayed in the FIR in question and

has also identified the respondent No.2 present in the Court today through Video Conferencing as being the complainant thereof.

The respondent No.2 present in person in replies to specific Court queries has affirmed the factum of the settlement arrived at between the parties as well as the factum of the divorce through mutual consent granted between her and the petitioner No.1 vide a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, 1955 dated 25.11.2019 in HMA No. 1787/2019 of the Court of the Judge, Family Court, Central District, Tis Hazari Court. She has also stated to the effect that there is no opposition to the quashing of the FIR and the consequential proceedings being quashed subject to the entire terms of the settlement being adhered to and has stated that she had received a sum of Rs.25,00,000/- previously out of the stated settlement amount of Rs.35,00,000/-.

Learned counsel for the petitioners submits that Rs.10,00,000/- has since been sent by RTGS to the account of the respondent No.2. The respondent No.2 submits that she has not yet received any message from her bank in relation thereto.

In view thereof, renotify on 16.9.2020.

ANU MALHOTRA, J SEPTEMBER 15, 2020 SV Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:15.09.2020 21:02:59 This file is digitally signed by PS to HMJ ANU MALHOTRA.

IN THE HIGH COURT OF DELHI: NEW DELHI AMIT NATH SAINI & ORS. VS. STATE (GOV. OF NCT OF DELHI) & ANR 15.09.2020 CW-1 SI PUSHPENDER SAROHA, POLICE STATION SARAI ROHILLA ON S.A. I identify the petitioner Nos. 1 to 5 i.e. Amit Nath Saini, Maheshwari Nath Saini, Smt. Kamlesh, Smt. Himani Nath Saini and Sunil Kumar Soni as being the five accused persons arrayed in the FIR No.193/2012 PS Sarai Rohilla registered under Sections 498A/406/506/34 of the Indian Penal Code, 1860 present in the Court today through Video Conferencing and I also identify the respondent no.2 Shweta Saini, present in the Court today through Video Conferencing, as being the complainant thereof.

RO & AC
15.09.2020

ANU MALHOTRA, J

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MALHOTRA.

IN THE HIGH COURT OF DELHI: NEW DELHI AMIT NATH SAINI & ORS. VS. STATE (GOV. OF NCT OF DELHI) & ANR 15.09.2020 CW-2 MS SHWETA SAINI D/O SH. RAVI PRAKASH SAINI, R/O 315A, OLD ROHTAK ROAD, SHAHZADA BAGH, DELHI. AGED 37 YEARS ON S.A. I have no opposition to the prayer made by the petitioners No. 1 to 5, namely, Amit Nath Saini, Maheshwari Nath Saini, Smt. Kamlesh, Smt. Himani Nath Saini and Sunil Kumar Soni seeking quashing of the FIR No.193/2012 PS Sarai Rohilla registered under Sections 498A/406/506/34 of the Indian Penal Code, 1860 subject to the settlement terms dated 1.10.2019 between me and the petitioner No.1 being adhered to. The marriage between me and the petitioner No.1 has since been dissolved vide a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, 1955 dated 25.11.2019 in HMA No. 1787/2019 of the Court of the Judge, Family Court, Central District, Tis Hazari Courts. Pursuant to the settlement arrived at between me and the petitioner No.1 a sum of Rs.35,00,000/- had been agreed to be paid to me out of which a sum of Rs.25,00,000/- has been received by me and the balance sum of Rs.10,00,000/- is yet to be paid to me. There is no child born of the wedlock between me and the petitioner No.1.

I have done my B.Ed. and I have made my statement after understanding its implications voluntarily of my own accord without any duress, coercion or pressure from any quarter.

RO & AC
15.09.2020

ANU MALHOTRA, J

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By: SUMIT GHAI
Signing
Date: 15.09.2020
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MALHOTRA.